

5	30-2022-01243344 Perez vs. The Container Supply Co., Inc.	Plaintiff Franco Perez and Ana Maria Avalos Herrera’s (collectively, “Plaintiffs”) Motion for Preliminary Approval of Class Action and PAGA Settlement is GRANTED ON THE CONDITION THAT within five (5) days of this ruling, Plaintiffs shall provide the court with an amended [Proposed] Order that attaches as exhibits “the Settlement Agreement (Exhibit 1), the First and Second Amendments (Exhibits 2 and 3), the Class Notice (Exhibit 4), the Opt-Out Form (Exhibit 5), the Notice of Objection (Exhibit 6), and their certified Spanish translations (Exhibit 7).” Plaintiffs and Plaintiffs’ counsel stated that this would be done but it was not done. (<i>See</i> ROA 162; Supp. Hillier Dec. ¶¶ 4-6; Supp. Br. at p. 5.) A Final Approval Hearing is set for December 14, 2026 at 1:30 p.m. All papers in support of the Final Approval Hearing, including detailed hourly breakdowns of plaintiff’s attorneys to support a lodestar cross-check, detailed plaintiff attorney cost breakdowns, an Administrator declaration and invoice, and plaintiffs’ declarations to support the enhancement request, must be filed at least 16 calendar days before the Final Approval Hearing date to provide enough time for court review, and must be served in compliance with CCP notice of motion requirements. Plaintiffs are ordered to give notice of the ruling to the LWDA and Defendant.
6	30-2024-01419434 Lozano vs. Nuvision Federal Credit Union	The tentative ruling is to continue Plaintiff Eduardo Lozano’s (“Plaintiff”) Motion for Preliminary Approval of Class Action and PAGA Settlement to November 23, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court’s concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement and the class notice, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. The estimated costs for the administrator have not been provided to the court and has not been explained in the class notice. Paragraphs 7.6 and 7.8.4. of the settlement agreement state that the Administrator will resolve any workweek disputes. The documents should reflect instead that, while the Administrator and the parties will attempt to resolve any such dispute, the court will ultimately decide any unresolved dispute.

Paragraph 7.5.2. of the settlement agreement states that the administrator shall make the final determination as to the authenticity of an opt-out request. The documents should reflect instead that the court will ultimately decide any unresolved dispute regarding the authenticity of an opt-out request.

The allocation of only 20% of the settlement payments for wages appears to be low. Either an increase to 33 1/3% or an explanation of why the figure is not at least 33 1/3% is required.

The Class and PAGA Periods are defined as ending on October 20, 2025. However, the escalator clause in Paragraph 8 of the settlement agreement provides for the option to either increase the settlement amount or change the Class and PAGA Periods such that some of the class members and aggrieved employees might no longer be included in the settlement. This court, however, will not approve a settlement that results in class members and aggrieved employees being told they are in the settlement but later being told they are not included in the settlement. Thus, defendant will have to either rely on or take another look at its estimated number of class members and aggrieved employees or select the increased payment option. If the parties want to preserve the option calling for a reduction of the Class and PAGA Periods, rather than just an increase in the settlement amount, they must determine if the escalator clause applies before sending out the class notice, and have the class notice include the adjusted end date and not be sent to non-participants.

There is no information as to how many of the class members or aggrieved employees speak and/or read English, which might require that the class notice also be in another language.

The court is inclined to grant approval of an attorneys' fees request of only 30% of the gross settlement amount, which the court finds fair, adequate and reasonable for the settlement of this size. The parties may either reduce the attorneys' fees request by amendment to the settlement agreement and the class notice, or Plaintiff must provide documentation and support for any request higher than this percentage at the final approval stage.

Plaintiff does not provide any information as to how attorneys' fees will be split between the two firms representing plaintiff. Plaintiff must disclose the proposed split so that the court can approve separate attorneys' fees awards.

The following changes must be made to the class notice:

- Rather than having class members prepare their own opt-out requests, the class notice must include an exclusion form that class members can complete and submit. The form should be referenced in the class notice.

		• In the second row, second column in the table under Section 9 of the class notice, the year stated should be 2026 not 2023. • Participating class members can object to the amount allocated to the PAGA settlement. The first column at the top of page 6 of the class notice, should be amended to state: “Participating Class Members Can Object to the Class Settlement,” with the phrase “but not the PAGA Settlement” deleted. Plaintiff is ordered to give notice of this ruling to the LWDA and Defendant.
7	30-2024-01396861 Perez vs. Service Champions, LLC	Plaintiffs Francisco Perez, Oscar Zaragoza and Niyom Chetcheuth’s (collectively, “Plaintiffs”) Motion for Preliminary Approval of Class Action and PAGA Settlement is GRANTED. A Final Approval Hearing is set for December 21, 2026 at 1:30 p.m. All papers in support of the Final Approval Hearing, including detailed hourly breakdowns of plaintiff’s attorneys to support a lodestar cross-check, detailed plaintiff attorney cost breakdowns, an Administrator declaration and invoice, and plaintiffs’ declarations to support the enhancement request, must be filed at least 16 calendar days before the Final Approval Hearing date to provide enough time for court review, and must be served in compliance with CCP notice of motion requirements. Plaintiff shall provide notice of this ruling to the LWDA and Defendant.
8	30-2022-01240591 Boucher vs. Unstoppable Automotive Group, LLC	Off Calendar
11	30-2020-01174005 Utzman vs. County of Orange	<u>MSJ BY DEFENDANT COUNTY OF ORANGE</u> Defendant County of Orange’s (“County”) Motion for Summary Judgment is DENIED. The County’s alternative Motion for Summary Adjudication is GRANTED as to Issue No. 1 as to the First, Second and Eighth Causes of Action based on Plaintiffs’ failure to satisfy the pre-filing requirements under the Government Tort Claims Act for these claims that seek only money damages for past misconduct. The Court DENIES summary adjudication as to Issue Nos. 2 and 3.